



## THE PRESIDENT'S SALARY, ALLOWANCES AND PRIVILEGES ACT, 1975.



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**THE PAKISTAN CODE**

# THE PRESIDENT'S SALARY, ALLOWANCES AND PRIVILEGES ACT, 1975.

<sup>1</sup>Act No. LVIII of 1975

[23rd July, 1975]

## **An Act to determine the salary, allowances and privileges of the President.**

WHEREAS it is expedient to determine the salary, allowances and privileges of the President and to make provision for enabling him to discharge conveniently and with dignity the duties of his office;

It is hereby enacted as follows:—

**1. Short title and commencement.**—(1) This Act may be called the President's Salary, Allowances and Privileges Act, 1975.

(2) It shall come into force at once.

**2. Definitions.** —In this Act, unless there is anything repugnant in the subject or context,—

- (a) "family of the President" includes the President's <sup>2</sup>[spouse] and such of his children, step-children, parents, brothers and sisters as ordinarily reside with and are wholly dependent upon him ;
- (b) "furnishings" means pictures, paintings, curios, linen, glass-ware, brass-ware, cutlery, crockery, kitchen equipment, radios, radio-grams, lamps, public address systems, projectors, television sets of all kinds, accoustical equipment and similar other articles;
- (c) "furniture" includes carpets, sofa covers, curtains, refrigerators, airconditioners, washing machines and similar other articles;
- (d) "Government" means the Federal Government;
- (e) "maintenance",—
  - (i) in relation to official residence, includes the maintenance and replenishing of furniture and furnishings, payment of local rates and taxes, maintenance of roads and electric, water, gas and sanitary fixtures and installations, and the provision of electricity, gas and water;
  - (ii) in relation to rivercraft, includes expenditure on the pay of the establishment maintained in connection therewith, and on their victualling while afloat, and expenditure on the purchase of marine stores; and
  - (iii) in relation to official cars and aircraft, includes the pay and allowances of chauffeurs, pilots and other establishment and the provision of oil and petrol;

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<sup>1</sup>For Statement of Objects and Reasons, see Gaz. of P., 1975 Ext., Pt., III, p. 586.

<sup>2</sup>Subs. by the Finance Act, 1996(9 of 1996) s. 8, for "wife"

- (f) "official cars", "railway saloons", "rivercraft" and "aircraft" means such cars, railway saloons, rivercraft and aircraft, if any, as are from time to time provided for use by the President;
- (g) "official residence" means the house specified in the First Schedule and such other premises in Pakistan as the President may use as his official residence, and includes the staff quarters and other buildings appurtenant thereto and the gardens thereof;
- (h) "prescribed" means prescribed by rules to be made by the Government;
- (i) "year" means a year commencing on the first day of July and ending on the thirtieth day of June next following; and
- (j) other words and expressions used in this Act and not defined shall have the meanings assigned to them in the Constitution of the Islamic Republic of Pakistan or the Fundamental and Supplementary Rules.

<sup>1</sup>[3. **Monthly Salary.**— (1) The Government shall pay per month salary to the President as specified in the Fourth Schedule.

(2) The Government may, by notification in the official Gazette, amend the Fourth Schedule to increase the salary of the President keeping in view the guiding principle that the remuneration of the President shall be a symbolic one rupee higher than the salary of any holder of public office in relation to affairs of the Federation.]

4. **Equipment allowance.**— The President may, on his assumption of office as such, draw <sup>2</sup>[twenty] thousand rupees as an allowance for equipping himself, once on first appointment only.

5. **Allowances on taking up and laying down the office.**—(1) The President shall be entitled to travelling allowances to the extent mentioned below for the journey from his place of residence in Pakistan to the official residence on taking up office and from the official residence to his place of residence on laying down office:—

- (a) the actual travelling expenses for himself and his family;
- (b) the cost of transporting personal servants, not exceeding three, by the lowest class of accommodation; and
- (c) the cost of transporting household effects, not exceeding one hundred and twenty maunds, by goods train, steamer or other craft, excluding aircraft, and his personal car, if any.

(2) No claim shall lie for any travel or transportation not performed within six months of the date of taking up or laying down office, as the case may be.

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<sup>1</sup>Subs. by Act XXXVI of 2018, s.2.

<sup>2</sup>Subs. by the Finance Act, 1996 (9 of 1996) s. 8 for "five".

**6. Official residence, railway saloons, rivercraft, aircraft and official cars.—**(1) Throughout his term of office the President shall be entitled, without payment of rent or hire, to the use of his official residence, and of the railway saloons, rivercraft, aircraft and official cars, and no charge shall fall on him personally in respect of the maintenance thereof:

Provided that the President shall not, except when proceeding on or returning from leave, be entitled to the use of the railway saloons, rivercraft, aircraft or official cars during any period for which he is on leave.

(2) The provisions of sub-section (1) shall also apply to the family of the President.

**7. Discretionary grant, sumptuary allowance and other allowances.—** There shall be paid in each year to the President—

- (a) an allowance for expenses connected with the purposes specified in the Second Schedule, not exceeding the maximum amounts specified in that Schedule:

Provided that the President may, without exceeding the maximum specified in column 7 of the aforesaid Schedule, reappropriate, whenever necessary, from any sub-head in that Schedule to any other sub-head therein, except to or from the sub-heads relating to discretionary grant and sumptuary allowance;

- (b) an allowance for expenses connected with improvements in and maintenance of the official residence and the maintenance of the furniture and furnishings thereof, not exceeding the maximum amount specified in the Third Schedule :

Provided that the President may, without exceeding the maximum specified in column 5 of the aforesaid Schedule, reappropriate, whenever necessary, from one sub-head in that Schedule to another sub-head therein <sup>1</sup>[;]

- <sup>1</sup>[(c) the actual charges for electricity and gas consumption.]

**8. Payment of further amounts.—** There shall be paid from time to time to the President such further amounts as may be necessary to enable him to discharge conveniently and with dignity the duties of his office as he may by general or special order authorize, and any such order may be given retrospective effect whenever necessary.

**9. Payment on account of deferred pay, etc., of officers.—** Nothing in this Act shall apply to any payment on account of the deferred pay, leave salaries, allowances, cost of passage or increments due to any officer provision for whose pay is made in the Second Schedule, and the amount of such payment shall be in addition to the maximum amounts specified in that Schedule.

**10. Amounts to be included in estimates of expenditure.—** The President may, subject to any general or special order made by him, include the amounts in any year in the estimates of expenditure for the purpose of giving effect to the provisions of this Act, and such amounts shall be charged upon and paid out of the Federal Consolidated Fund.

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<sup>1</sup>Subs. and add by the Finance Act., 1996 (9 of 1996) S. 8.

**11. Compensation in case of air accident.**—(1) If the President, while travelling by air, on official duty, by any flight scheduled or unscheduled (including flight in a Government-owned aircraft of any type), dies or receives an injury as a result of an accident, the Government shall pay to the person or persons referred to in sub-section (2) a sum of <sup>1</sup>[one million] rupees, in the case of death, and an amount to be determined by the Government having regard to scales of compensation applied by insurance companies in like cases, in the case of injury.

(2) The compensation shall be payable, in the case of injury, to the President and, in the case of death, to such member or members of his family, or, if there be no such member, such other person or persons as may be nominated by him, and in the absence of such nomination to his heirs.

(3) A nomination under sub-section (2) may be made, and may also be revoked or altered, by a notice in writing signed by the President and addressed to the Accountant General, Pakistan Revenues.

**12. Leave of absence.**— (1) The President may avail himself of leave of absence during his term of office, at any one time or from time to time, for urgent reasons of health or private affairs for a period not exceeding four months in the aggregate :

Provided that the President may extend this period of four months in which case the reasons for the extension shall be recorded in a minute:

Provided further that the President shall also be entitled to the un-utilized period of leave of four months immediately after laying down his office.

(2) The leave allowance of the President shall be <sup>2</sup>[fifty seven thousand] rupees per mensem and shall be subject to income-tax.

**13. Medical facilities.**— The President and the family of the President shall be entitled to medical facilities in accordance with the Special Medical Attendance Rules:

Provided that he and his family shall ordinarily be entitled to receive medical treatment at his residence:

Provided further that the President may, if so advised by his physician, receive medical treatment abroad or consult a foreigner or a physician other than his own and receive such other treatment as may be prescribed.

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<sup>1</sup>Subs. by the Finance Act, 1996 (9 of 1996) S. 8.

<sup>2</sup>Subs. by ord. XI of 2002, S. 3 (w.e.f 1.05.2001)

**14. Customs duties or sales tax not leviable on certain articles.**—(1) No custom- duties or sales tax shall be levied on the following articles if imported or purchased out of bond by the President on appointment or during his tenure of office, namely:—

- (a) articles for the personal use, wear or consumption of the President or any member of the family of the President provided that the cost thereof shall not exceed <sup>1</sup>[two hundred thousand] rupees *per annum*;
- (b) <sup>2</sup>[\* \* \* \* \*]
- (c) foodstuffs and tobacco for consumption by the President, members of his family and his guests, whether official or not;
- (d) articles for furnishing of the President's official residence; and
- (e) Official cars, rivercraft or aircraft.

(2) No custom-duties or sales tax shall be levied on tobacco imported by manufacturers in Pakistan for the manufacture of cigarettes, and no excise duty shall be levied on indigenous tobacco used in Pakistan in the manufacture of cigarettes and on cigarettes manufactured in Pakistan, when such cigarettes are for consumption by the President, members of his family or the guests referred to in clause (c) of sub-section (1).

(3) No excise duty shall be levied on indigenous petrol and petroleum products when such petrol or petroleum products are for use in the official cars, rivercraft and aircraft referred to in clause (e) of sub-section (1).

**15. Provident Fund.**— The President may, at his option, become a subscriber to the General Provident Fund and if he so opts, he shall subscribe to the Fund as a compulsory subscriber in accordance with the General Provident Fund (Central Services) Rules.

**16. Act to have effect subject to instructions, etc.**— This Act shall have effect subject to such instructions, rules, exceptions, further concessions or easements, as the Government may, from time to time, prescribe or grant.

**16A.** <sup>3</sup>[\* \* \* \* \*]

**17. [Repeal.]** Omitted by the *Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and II Sch.*,

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<sup>1</sup>Subs.by the Finance Act, 1996 (9 of 1996) s. 8. for "fifty thousand".

<sup>2</sup>Clause (b) omitted by the President's Salary, Allowances and Privileges (Amdt.) Act 1997. (32 of 1997) s. 2, which was previously subs. by Act 9 of 1996, s. 8.

<sup>3</sup>Omitted by ord. XI of 2002, S. 4 (w.e.f 1.5.2001).

## FIRST SCHEDULE

[See section 2 (g)]

### OFFICIAL RESIDENCE

<sup>1</sup>[Aiwan-e-Sadr, Islamabad]

## SECOND SCHEDULE

[See section 7(a)]

*Maximum yearly amounts for expenditure in respect of certain matters.*

| Discretionary Grant      | Sumptuary Allowances | Staff Including dispensary establishment | Contract Allowance including maintenance of gardens | State conveyance including motor cars and their replacement | Tour-expenses | Total      |
|--------------------------|----------------------|------------------------------------------|-----------------------------------------------------|-------------------------------------------------------------|---------------|------------|
| 1                        | 2                    | 3                                        | 4                                                   |                                                             | 6             | 7          |
| <sup>2</sup> [1,000,000] | 600,000              | 2,250,000                                | 1,500,000                                           | 600,000                                                     | 600,000       | 6,550,000] |

- <sup>3</sup>[Notes:— (i) The amount of discretionary grant shall be replenished on its utilisation as a revolving fund.
- (ii) Sumptuary allowance is exclusive of the expenditure on national celebrations, provision for which is made under "Contract Allowance".]

## <sup>4</sup>[THIRD SCHEDULE

[See section 7(b)]

*Maximum yearly amount for improvement and maintenance of official residence.*

| Improvement, repair and maintenance of residence including maintenance and replenishment of furniture | Rates, taxes and Water | Total           |
|-------------------------------------------------------------------------------------------------------|------------------------|-----------------|
| (1)                                                                                                   | (2)                    | (3)             |
| Rs. 1,750,000                                                                                         | Rs. 300,000            | Rs. 2,050,000.] |

<sup>1</sup>Subs. by Finance Act, 1996 (9 of 1996) s. 8 for "The Presidency, Rawalpindi."

<sup>2</sup>Subs. by the Finance Act, 1996 (9 of 1996) s. 8 for figures "2,00,000, 1,50,000" "11,20,000", "6,00,000", "2,60,000", "300,000" and "26,30,000".

<sup>3</sup>Subs. ibid., for "Note".

<sup>4</sup>Subs. ibid., for THIRD SCHEDULE.

<sup>1</sup>**[FOURTH SCHEDULE**

[See section 3]

Salary

Rs. 846,550/- (Rupees eight hundred forty six thousand five hundred and fifty only)]



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<sup>1</sup> Ins. By Act XXXVI of 2018, s.3.